

DECISIONS · 14 SEP 2001

Antibes Commercial Court

TYPE	COURT	DATE	PARTIES
Court decision	The Antibes Commercial Court	14 Sep 2001	Compulsory liquidation of SA SEBOL

SUMMARY SHEET

Compulsory liquidation of SA SEBOL — Antibes Commercial Court · 14 September 2001

Overview: judgment of the first chamber of the Antibes Commercial Court ordering the compulsory liquidation of SA SEBOL, a company operating under the McDonald's banner in the Carrefour shopping centre, chemin de Saint-Claude in Antibes.

Key points

By judgment of 18 May 2001, the court had opened receivership proceedings against SEBOL. At the end of the observation period, the creditors' representative, Maître Gauthier, reported to the supervising judge, and the debtor appeared at the hearing of 12 September 2001. Adopting the report presented and the submissions of the Public Prosecutor, the court finds liabilities of 2,774,638.69 francs and considers that only compulsory liquidation can be envisaged. On the basis of article L. 622-5 of the Commercial Code, it orders the liquidation, retains a supervising judge and appoints Maître Gilles Gauthier as liquidator. The decision is delivered by judgment after hearing both parties and at first instance, presided over by Mr Gérard Perugini.

Significance

This document marks the procedural outcome for one of the companies of the franchisee Bernard Collorafi, whose financial situation is here settled by the court after the failure of the receivership.

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Source: bernardcollorafi.org/en/documents/judgment-antibes-commercial-court-liquidation-sa-sebol-mcdonalds-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.